

mandatory moisture-conditioning requirements allowed unstable subgrade conditions to persist beneath the tandem scraper operations and affirmatively contributed to the terrain failure and scraper decoupling that caused Plaintiff's injuries. (*Id.* at ¶ 58; Avrit Decl. ¶ 23.)

Under *Hooker*, "if the hirer promises to undertake a particular safety measure, then the hirer's negligent failure to do so should result in liability if such negligence leads to an employee injury." (*Hooker, supra*, 27 Cal.4th at 212, fn. 3.) On this record, a reasonable jury could find that KPRS—having contractually required compliance with the geotechnical specifications, positioned itself as the coordinator of compliance, and led Crew Inc. to rely on KPRS and the geotechnical consultant to verify compliance—affirmatively contributed to Plaintiff's injuries through its failure to ensure the mandatory moisture-conditioning was implemented before allowing heavy equipment operations to proceed on collapsible soils. Unlike *Madden*, which involved passive observation of an obvious hazard by a subcontractor equipped to address it, the geotechnical requirements here were technical specifications the grading subcontractor could not independently verify. (Avrit Decl. ¶ 18.)

Causation

KPRS argues that it was not the legal cause of Plaintiff's injuries because the scraper equipment was owned, maintained, and operated by Crew Inc. However, Plaintiff has presented evidence that the cause of the scraper decoupling was the unstable terrain conditions resulting from KPRS's failure to ensure compliance with the geotechnical stabilization requirements, not mechanical failure of the equipment. (Avrit Decl. ¶¶ 8, 16, 22, 31, 44, 48.) Mr. Avrit opines that Crew Inc. maintained appropriate machinery safety and maintenance procedures and that the evidence does not indicate the scraper equipment failed due to a mechanical defect. (*Id.* at ¶ 41.) Thus, whether KPRS's conduct was a proximate cause of the injury presents a triable issue of material fact.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2300429	MENDEZ NUNEZ vs BOMBAY PARTNERS V ONTARIO, LLC	MOTION FOR SUMMARY JUDGMENT BY EITHER IDIL RAMONA LP OR KPRS CONSTRUCTION SERVICES

Tentative Ruling:

The Court has no tentative ruling on this motion. Counsel for plaintiff, for KPRS, and for IDIL shall appear to clarify (1) who is the moving party, (2) whether the plaintiff intended to object to a MSJ by that party, (3) whether the plaintiff objects to the motion being deemed to be by IDIL, and (4) whether the plaintiff is willing to stipulate the motion being granted or to the dismissal of IDIL.

Analysis:

This motion was filed on 10-28-25. The Notice of Motion states that the motion is brought by KPRS Construction Services. (Mtn., p. 2.) However, the memorandum of points and authorities refers to IDIL as the moving party. (Mtn., pp. 3-8.) The next document, a declaration of Carlson, never mentions IDIL. Instead, it appears to be designed to support a motion by KPRS. Similarly, the separate statement states that it supports the motion of KPRS. The proposed order asks for summary judgment in favor of only IDIL.

Given the less-than-careful drafting of the motion, it is possible that the plaintiff was confused as to the moving party and failed to oppose that motion as a result of that confusion rather than as a result of an intentional decision not to oppose a motion by IDIL. The plaintiff's counsel shall be prepared to discuss the reason for the plaintiff's failure to oppose this motion and whether plaintiff is willing to stipulate to the motion being deemed one for IDIL and to the motion being granted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2407078	PATTON vs NISSAN NORTH AMERICA, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFFS

Tentative Ruling:

The plaintiffs' counsel's motion to be relieved as the plaintiffs' attorney of record is denied.

Analysis:

The proof of service on the two plaintiffs has not been filed. They were submitted to but rejected by the clerk's office.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505270	ZARATE vs VOLKSWAGEN GROUP OF AMERICA, INC.	MOTION FURTHER DISCOVERY RESPONSES

Tentative Ruling:

The plaintiffs' motion to compel further responses to its request for production of documents is granted as follows: